

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.



CHAPTER lxxvii.

An Act to enable the Stretford Urban District Council to purchase the undertaking of the Trafford Power and Light Supply (1902) Limited and to confer further powers on the Council in regard to their electricity undertaking to authorise the Council to provide and run omnibuses and to make further provision for the improvement health good government and finance of the district and for other purposes.

A.D. 1919.

[15th August 1919.]

WHEREAS the district of Stretford in the county of Lancaster is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Stretford Urban District Council which district and Council are in this Act respectively called "the district" and "the Council":

And whereas by the Stretford Electric Lighting Order 1897 (which was confirmed by the Electric Lighting Orders Confirmation (No. 7) Act 1897) the Council are empowered to supply electrical energy for public and private purposes within the district:

And whereas by section 23 of the Stretford Urban District Council Act 1904 it was provided that if and so long as the Trafford Power and Light Supply (1902) Limited (in this Act called "the Trafford Power Company") were able and willing to and did supply electrical energy within Trafford Park the Council should not exercise within such park their powers under the Order of 1897 or any other powers which the Council might acquire for that purpose nor consent to the exercise by

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. any other body or person of such powers but the provisions of the section were not to prevent or interfere with the exclusive supply by the Council of energy for the purpose of lighting any streets and roads within the district repairable by the inhabitants at large or after two years from the passing of the Act for the purpose of electric traction in Trafford Park and the provisions of the section were not to enure for the benefit of or apply to any assignees of the Trafford Power Company except with the consent of the Council:

And whereas the Trafford Power Company is without statutory power supplying electricity within the area known as Trafford Park (as defined in section 4 of the Trafford Park Act 1904 and situate partly within the district and partly within the parish of Davyhulme in the rural district of Barton-upon-Irwell) and also within so much of the county borough of Salford as coincides with Nos. 6 7 and 8 docks of the Manchester Ship Canal and the warehouse and buildings adjoining or connected with such docks and for that purpose has erected works in the district and acquired lands:

And whereas the Trafford Power Company have agreed to sell their undertaking to the Council upon the terms and conditions of the agreement set forth in the First Schedule to this Act and it is expedient to authorise the Council to purchase the undertaking accordingly and to confirm the said agreement:

And whereas it is expedient to make further provision in regard to the electricity undertaking of the Council:

And whereas by section 28 of the Act of 1904 the Council are authorised to provide and run omnibuses within the district in connexion with the tramways of the Council when the running of carriages thereon is impracticable or during the construction reconstruction alteration or repair thereof or in extension of any of such tramways or for the purpose of connecting together any of such tramways and also for testing the amount of traffic along any route or between any particular points and it is expedient to confer further powers on the Council in regard to the provision and running of omnibuses within and beyond the district:

And whereas it is expedient to make further and better provision in regard to streets and buildings in the district and that the powers of the Council in relation to the health local

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

government and improvement of the district be enlarged as by A.D. 1919.
this Act provided:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Stretford Urban District Council Act 1919. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Electricity.

Part III.—Omnibuses.

Part IV.—Streets and Buildings.

Part V.—Watercourses.

Part VI.—Sewers Drains &c.

Part VII.—Infectious Disease and Sanitary Provisions.

Part VIII.—Financial.

Part IX.—Miscellaneous.

Division of
Act into
Parts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act. Incorporation of Lands Clauses Acts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or Interpretation.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. context repugnant to such construction And in this Act unless
the subject or context otherwise requires—

“The district” means the urban district of Stretford;

“The Council” means the urban district council of the district;

“The clerk” “the treasurer” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the clerk the treasurer the medical officer of health the surveyor and the inspector of nuisances of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Omnibus” means any stage carriage moved by mechanical power (including in that expression steam electrical and every other motive power) or by animal power;

“Food” includes every article other than water used for food or drink by man;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“The Act of 1904” and “the Order of 1897” mean respectively the Stretford Urban District Council Act 1904 and the Stretford Electric Lighting Order 1897;

“The Trafford Power Company” means the Trafford Power and Light Supply (1902) Limited;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

rentcharges or securities transferable by delivery or any securities of the Council; A.D. 1919.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertaking or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council.

PART II.

ELECTRICITY.

5.—(1) There shall be added to or be included in the area of supply under the Order of 1897 so much of the township of Davyhulme in the rural district of Barton-on-Irwell as lies to the north-east of an imaginary line drawn along the centre of the Bridgewater Canal and the Council may within or in respect of the said area of supply as so extended and added to exercise all or any of the powers for or in connexion with the supply of electrical energy conferred upon the Council by the Order of 1897 or the Act of 1904 within or in respect of the district:

Provided that in respect of the area added by this section the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 shall be deemed to be incorporated with the Order of 1897 and to control and supersede such of the provisions of that Order as are at variance or inconsistent therewith and section 2 (Purchase of undertaking by local authority) of the Electric Lighting Act 1888 shall in its application to the part of the undertaking of the Council within the said added area be

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. read and have effect as though the words "twenty-one years" had been inserted therein in lieu of the words "forty-two years."

(2) Provided also that the Council shall not supply energy under the powers of this section in the area hereinbefore described until they shall have purchased the undertaking of the Trafford Power Company under and in accordance with the agreement set forth in the First Schedule to this Act.

(3) The area described in subsection (1) of this section is coloured pink on the map of which three copies are signed by Sir William Middlebrook the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred and are respectively deposited at the Parliament Office of the House of Lords at the Private Bill Office of the House of Commons and with the clerk.

(4) Copies of the map deposited with the clerk in pursuance of subsection (3) of this section certified by him and the surveyor to be correct shall be received in all courts of justice and elsewhere as *prima facie* evidence of the correctness thereof.

As to over-
head wires.

6.—(1) The consent of the local authority within the area referred to in the section of this Part of this Act whereof the marginal note is "Area of supply" to the placing of electric lines above ground by the Council under section 14 (Restrictions as to above ground works) of the Electric Lighting Act 1882 and section 10 (b) of the schedule to the Electric Lighting (Clauses) Act 1899 shall not be unreasonably withheld.

(2) If any question arises between the Council and any such local authority as to whether such consent is unreasonably withheld that question shall be decided by the Board of Trade on the application of either party after notice in writing to the other.

Confirmation
of agreement
with
Trafford
Power and
Light
Supply
(1902)
Limited.

7.—(1) Subject to the provisions of this Act the agreement between the Trafford Power Company and the Council as set forth in the First Schedule to this Act (hereinafter called "the scheduled agreement") is hereby confirmed and made binding on and shall be carried into effect by the parties thereto.

(2) Section 23 (For protection of Trafford Power and Light Supply (1902) Limited) of the Act of 1904 shall as from the completion of the purchase pursuant to the scheduled agreement be repealed.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

8. Nothing in this Act or in the scheduled agreement or in any agreement referred to in the scheduled agreement shall authorise or require the Council to supply gas of any description or impose any liability upon the Council in relation to any such supply but nothing in this section shall affect the rights obligations and responsibilities of the Trafford Power Company and the Council as between themselves under the scheduled agreement.

A.D. 1919.

Council not
to supply
gas.

9. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the Trafford Power Company and in force at the time of the transfer shall (in so far as they relate to matters other than the supply of fuel gas) after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the Trafford Power Company the Council had been a party thereto.

Contracts of
Trafford
Power Com-
pany to be
binding on
Council.

10.—(1) The Council may maintain alter improve enlarge extend renew work and use—

Generating
station at
Stretford.

(a) Upon the lands hereinafter described the existing station for generating electrical energy together with such buildings engines works dynamos accumulators and other plant and machinery matters or things of whatever description as may be necessary or convenient to enable the Council to generate and supply electricity:

(b) Such lay-bys quays wharves docks roads rails ways mains pipes and other works and conveniences as the Council may think necessary or convenient for the purposes of or in connexion with the said station:

Provided that no such works shall be constructed maintained altered improved enlarged extended renewed or used upon or so as to affect in any way any property of the Manchester Ship Canal Company without the consent in writing of that company.

(2) The lands hereinbefore referred to contain seven thousand five hundred and sixty square yards or thereabouts and are situate in Trafford Park in the district and are bounded on the northerly side by Trafford Park Road on the westerly side by the electric cable works of W. T. Glover and Company Limited on the southerly side by the towing-path of the

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 Geo. 5.]
Act, 1919.

A.D. 1919. — Bridgewater Canal and on the easterly side by the premises of John Ashworth and Company.

As to supply
to Manches-
ter Ship
Canal Com-
pany in
Salford.

11.—(1) On the completion of the purchase by the Council of the undertaking of the Trafford Power Company in accordance with the scheduled agreement all such mains cables and apparatus as form part of that undertaking and are situate on Nos. 6 7 and 8 docks of the Manchester Ship Canal Company (in this section called "the canal company") and between those docks and the meter chamber on the south side of the Manchester Ship Canal shall by virtue of this Act be transferred to and vested in the mayor aldermen and burgesses of the county borough of Salford (in this section called "the corporation").

(2) In consideration of such transfer the corporation shall on such completion pay to the Council the sum of four thousand four hundred and thirteen pounds.

(3) As from the date on which the said mains cables and apparatus shall become vested in the corporation as aforesaid the corporation shall supply the canal company upon and subject to the terms and conditions of the agreement dated the twenty-second day of August one thousand nine hundred and one referred to in the Second Schedule of the scheduled agreement with such electrical energy as the canal company may from time to time require for all premises now supplied or entitled to be supplied on the terms of that agreement save so far as may be otherwise agreed between the corporation and the canal company and the Council shall be freed from all obligations to afford a supply of electrical energy to the canal company for use within the county borough of Salford. Provided that notwithstanding the provisions of this subsection if the corporation shall at least one month before the date of completion of the purchase by the Council of the undertaking of the Trafford Power Company give notice in writing to the Council that the corporation will not be in a position at the said date of completion to afford such supply to the canal company the obligations by this subsection imposed on the corporation shall be discharged by the Council instead of by the corporation until such time not exceeding three months from the said date of completion as the corporation may by such notice require and for the purpose of discharging the said obligations the Council

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

shall be entitled to supply such electrical energy accordingly and to exercise all such powers as may be necessary for that purpose. A.D. 1919. —

12. The Council may in connexion with and for the purposes of their electricity undertaking fit up show-rooms and offices and exhibit specimen installations and give demonstrations of the uses to which electrical energy can be put and may appoint and pay persons for the purposes aforesaid. As to offices showrooms &c.

13. The Council may make byelaws for the purpose of preventing fire in any building or premises supplied with electrical energy with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such buildings or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section. Byelaws as to wires apparatus and fittings.

14.—(1) If any consumer of electricity supplied by the Council under the terms of any agreement uses the electricity supplied to him by the Council in any manner contrary to the terms of such agreement the Council may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement: Provisions as to supply of electricity by agreement.

Provided that before discontinuing any such supply the Council shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

(2) A consumer supplied with electrical energy by the Council under the terms of any agreement shall be deemed to be a person to whom the Council may be and are required to supply energy within the meaning of section 30 of the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Council under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Council fail to supply energy to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Council:

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

As to
maximum
power which
may be
demanded.

15.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Council shall not include any supply of energy taken only on extraordinary occasions or as a standby supply unless such consumer shall pay to the Council such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Council in order to meet the possible maximum demand for those premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Extending
section 15 of
Electric
Lighting
Act 1909.

16. The provisions of section 15 of the Electric Lighting Act 1909 shall extend and apply to the supply of electricity by the Council for power purposes to any premises having a separate supply of power whether such separate supply be by electricity gas steam or other source of power.

Further
powers as to
entry upon
premises.

17.—(1) Any person who shall hinder an officer appointed by the Council from entering any premises in pursuance of section 24 of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) Where any premises which the Council are entitled to enter in pursuance of the said section 24 are unoccupied the Council may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

18.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

A.D. 1919.

Period of
error in
defective
meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Council.

19.—(1) A notice to the Council from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Council or be given by the consumer personally at the office of the Council.

Notice to
discontinue
supply of
electricity.

(2) Notice of the effect of this section shall be endorsed upon any demand note for charges for electricity.

20. Any expenses reasonably incurred by the Council in reconnecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Council in like manner as expenses lawfully incurred by them in such cutting-off or disconnecting.

Power to
recover
charge for
recon-
nection.

21. The Council may refuse to supply electricity to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Council in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Power to
refuse to
supply elec-
trical energy
in certain
cases.

22. The Council may subject to the provisions of the Electric Lighting Acts 1882 to 1909 and the provisions of the Order of 1897 construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connexion with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that no such sub-stations

Power to
construct
electrical
sub-stations
under
streets.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 Geo. 5.]
Act, 1919.

A.D. 1919. transforming stations or other works connected therewith shall be constructed within a distance of twenty-five yards of any property of the Great Central Railway Company or the Great Central and North Western Railways Joint Committee or the Cheshire Lines Committee except with the consent of such company or committee as the case may be.

Attachment
of brackets
&c. to
buildings.

23. The Council may with the consent of the owner of any building wall or bridge attach to that structure such brackets wires and apparatus as may be required for lighting any street:

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and to determine by which of the parties the costs of the appeal are to be paid:
- (2) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the structure but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under the first proviso to this section:
- (3) The owner may require the Council temporarily to remove the attachments where necessary during any reconstruction or repair of the structure:
- (4) The Council shall not affix brackets wires or apparatus to any structure belonging to the Great Central.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

Railway Company or the Great Central and North Western Railways Joint Committee or the Cheshire Lines Committee without the previous consent in writing of such company or committee as the case may be or if such consent be unreasonably withheld the consent of an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers. A.D. 1919.

For the purpose of this section any occupier of a structure whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

24. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at large within their area for the supply of electricity supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Acts 1882 to 1909 and of the Order of 1897 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes hereof : Power to lay electric mains in private streets.

Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company or any street belonging to the Manchester Ship Canal Company nor shall the Council in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

25. Notwithstanding anything contained in section 52 of the Order of 1897 the Council may if they think fit instead of carrying the net surplus remaining in any year of the revenue received by them in respect of their electricity undertaking and the annual proceeds of the reserve fund when amounting to the prescribed limit to the credit of the local rate apply the whole or any portion thereof to the purchase of electric mains or lines machinery apparatus appliances and fittings (for the Further power as to net revenue &c.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. supply of electricity) to defraying the cost of laying such mains or lines and the fixing of such machinery apparatus appliances and fittings and to the formation of a fund for working capital. Provided that the fund so formed shall not at any time exceed the sum of ten thousand pounds.

As to
expenses and
receipts.

26.—(1) Any expense incurred by the Council in carrying into effect the provisions of this Part of this Act relating to the supply of electricity and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of section 7 (Expenses of local authority) and section 8 (Power of local authority to borrow money) of that Act shall extend and apply accordingly to such expenses.

(2) Any moneys received by the Council under the said provisions shall be applied in manner provided by section 52 of the Order of 1897 except capital moneys which shall be applied in manner provided by section 53 of the Order.

PART III.

OMNIBUSES.

Power to
provide and
run omni-
buses.

27.—(1) The Council may provide (but shall not manufacture) omnibuses and may run the same along any streets or roads within the district and with the consent of the local authority and the road authority and as regards streets or roads repairable by the Trafford Park Estates Company Limited or the Trafford Park Company with the consent of the company repairing the same along any street or road outside the district in prolongation of any route within the district. Provided that the Council or their lessees as defined in the section of this Act of which the marginal note is "Council may lease omnibus powers" shall not run omnibuses along any route where for the time being the Manchester Corporation or any other local authority or company own or work tramways or light railways for the conveyance of passengers without the consent of such corporation local authority or company nor along any street or road belonging to the Manchester Ship Canal Company without the consent of that company.

(2) The Council may purchase by agreement take on lease and hold lands and buildings and may erect on any lands

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running maintenance and equipment of such omnibuses but the Council shall not create or permit any nuisance on any such lands. A.D. 1919.

(3) The Council may make byelaws for regulating the travelling and for the prevention of nuisances in or upon the said omnibuses. Provided that any such byelaws shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General or with the telegraphic and signalling apparatus on the railways of any railway company or joint committee of railway companies.

(5) The Council shall perform in respect of the omnibuses provided under this Act all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

(6) The Council shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

(7) The powers conferred by this section of running omnibuses shall not be exercised by the Council on any main road vested in the Lancashire County Council or on any road towards the maintenance repair and reasonable improvement whereof the Lancashire County Council is required by law to make a contribution except with the consent under seal of the said county council which consent shall not be unreasonably withheld and may be given upon and subject to such terms and conditions as may be agreed between the Lancashire County Council and the Council and the terms and conditions so agreed may and shall be observed and performed by the parties to the agreement. Any difference as to whether or not such consent is unreasonably withheld shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

(8) Any consent of the said county council or of any local authority or road authority under this section may be given for such period not exceeding seven years as may be agreed and may be extended or renewed by agreement within twelve months before or at any time after the determination of any existing agreement.

For protection of
Great
Central Rail-
way Com-
pany and
Great
Central
and North
Western
Railways
Joint
Committee.

28.—(1) The Council shall pay to the Great Central Railway Company and the Great Central and North Western Railways Joint Committee (which bodies are in this section referred to severally or jointly as "the company") an annual sum equal to three-eighths of a penny per car mile run by the omnibuses over any road repairable by the company towards the cost of the maintenance by the company of such road. All sums of money payable to the company under the provisions of this section shall be deemed to be a debt due to the company and recoverable from the Council accordingly.

(2) The Council shall keep statements for the purposes of this section showing in proper detail the mileage run by each omnibus on the roads of the company and shall furnish copies of such statements annually to the company and the Council shall allow any person duly authorised by the company in that behalf at all reasonable times to inspect and take copies of all such statements and any accounts kept by the Council relating to the running of all such omnibuses.

(3) In consideration of the payments to be made by the Council to the company under this section the company shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Council in respect of extraordinary traffic by reason of the user of any such road by the omnibuses of the Council.

Fares for
passengers.

29. The Council may demand and take for the conveyance of passengers travelling upon the omnibuses such reasonable fares and charges as may from time to time be approved by the Board of Trade.

Passengers'
luggage.

30. Every passenger travelling upon the omnibuses may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and not

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

to occupy any part of a seat nor to be of a form or description A.D. 1919.
to annoy or inconvenience other passengers.

31. The Council may demand and take in respect of Rates for parcels conveyed by them on the omnibuses including every parcels.
expense incidental to such conveyance any rates or charges not exceeding the following (that is to say):—

For any parcel not exceeding seven pounds in weight
threepence;

For any parcel exceeding seven pounds and not exceeding
fourteen pounds in weight fivepence;

For any parcel exceeding fourteen pounds and not exceeding
twenty-eight pounds in weight sevenpence;

For any parcel exceeding twenty-eight pounds and not
exceeding fifty-six pounds in weight ninepence.

32. The Council shall not carry on the omnibuses any Council not
goods animals or other things other than passengers' luggage to carry
not exceeding the weight in this Act in that behalf mentioned animals and
small parcels not exceeding fifty-six pounds in weight and dogs ^{these dogs} goods other
in the charge of passengers. and small
parcels.

33. The Council shall not be bound to carry dogs on the Charges for
omnibuses but they may demand and take in respect of any dogs.
dog so carried any sum not exceeding the fare payable by the
passenger who is in charge of the dog.

34. The Council may erect and maintain sheds shelters or Shelters or
waiting-rooms for the accommodation of passengers and of the waiting-
Council's servants on any omnibus routes provided under this rooms.
Act and may use for that purpose portions of the public streets
or roads Provided that the Council shall not use portions of
any public street or road beyond the district for the purposes
mentioned in this section except with the consent of the local
authority in whose district such street or road is situate and of
the authority by whom such street or road is maintained or by
whom a contribution towards the maintenance of such street or
road is required by law to be made Provided further that the
Council shall not erect or maintain any such sheds shelters or
waiting-rooms in any street or road so as to interfere with or
render less convenient the access to or egress from any station
or depôt belonging to the Great Central Railway Company or
the Great Central and North Western Railways Joint Committee

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. or the Cheshire Lines Committee except with the consent in writing of such company or committee as the case may be or if such consent be unreasonably withheld the consent of an engineer to be appointed on the application of either party by the Board of Trade.

Lost
property.

35. Any property found in any omnibus of the Council shall forthwith be handed to the conductor of the omnibus or taken to a place to be appointed for the purpose by the Council and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the omnibus undertaking of the Council.

Council may
lease omni-
bus powers.

36. The Council may with the consent of the Board of Trade and subject to the provisions of this Act by lease to be approved by the Board of Trade demise to any person company or authority (in this section referred to as "lessees") the omnibuses and the carriage and motor houses buildings and sheds provided under the powers of this Act and the right of user of the same and of demanding and taking the fares rates and charges authorised by this Act.

Notice of the intention to make such lease shall be published by the Council by advertisement and a copy of such lease shall be deposited according to the regulations contained in Part I. of Schedule C. to the Tramways Act 1870 annexed and unless such notice is given and such copy deposited such lease shall not be approved by the Board of Trade.

Every such lease shall be made for a term or terms not exceeding in the whole twenty-one years.

On the determination of any lease made under this section the Council may from time to time with the consent of the Board of Trade by lease demise such rights for such further term or terms not exceeding in any case twenty-one years as the said Board may approve.

Every such lease shall imply a condition of re-entry if at any time after the making of the same the lessees discontinue the working of the omnibuses so leased for the space of three calendar months such discontinuance not being occasioned by

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

circumstances beyond the control of the lessees for which purpose the want of funds shall not be considered a circumstance beyond their control. A.D. 1919.

37. The Council and any other local authority company body or person running omnibuses or other vehicles in any other district adjoining or adjacent to the district may enter into and carry into effect agreements for all or any of the following purposes (that is to say):— Agreements with other authorities &c.

(A) The working management and maintenance of all or any of the omnibus services provided by the contracting parties and of any land and property used by them in connexion with such services:

(B) The supply by any of the contracting parties under and during the continuance of any such agreement of omnibuses and conveniences in connexion therewith necessary for the purpose of such agreement and the employment of officers and servants:

(C) The interchange accommodation conveyance transmission and delivery of traffic arising from or destined for any omnibus service of the contracting parties:

(D) The payment collection and apportionment of the rates charges and other receipts arising from any such omnibus services of the contracting parties.

38. Notwithstanding anything contained in this Act the following provisions for the protection of the lord mayor aldermen and citizens of the city of Manchester (in this section called "the corporation") shall except so far as may be otherwise agreed in writing between the Council and the corporation under their respective common seals apply and have effect (that is to say):— For protection of Manchester Corporation.

(1) Nothing in this Act contained shall alter or prejudicially affect any statutory provisions or the terms of any agreements made between the Council and the corporation as to the supply of electricity for the working of tramways by the corporation within the district:

(2) If during the period for which the corporation are lessees of any tramways within the district the

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

Council decide to demise any of their omnibuses or the right of user of the same the Council shall give the corporation the first option of taking a lease thereof.

PART IV.

STREETS AND BUILDINGS.

Intersecting
streets.

39.—(1) The Council in any case in which it is proposed to lay out a new street may require that such street shall not be laid out without the provision of such intersecting street or streets as will secure intersecting streets at intervals of not more than one hundred and fifty yards each from the other on each side of such new street and of any street of which it forms a continuation. Provided that if on either side of such last-mentioned street there shall already be a greater length from the proposed new street than one hundred and fifty yards without an intersecting street such greater length shall for the purposes of this section be deemed to be one hundred and fifty yards. Provided that this section shall not apply to any portion of a street abutting on premises used solely for industrial purposes:

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purposes of this section "intersecting street" means a side or cross street forming a junction with or crossing another street.

(4) Section 54 of the Act of 1904 is hereby repealed.

Widening of
roads when
only one
side is built
upon.

40. When a road footpath or way within the district is about to become a new street within the meaning of the Public Health Acts but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the district require such owner to widen such road footpath or way so as to give a width not less than one half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land. Provided that if and when the land on the opposite side of such road footpath or way shall be in course of being built on the owner of such

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

land shall complete the widening of such road footpath or way A.D. 1919.
so as to comply in all respects with the byelaws of the Council.

41. The Council may agree with the owner of any land in any street to give up land for the purpose of widening opening enlarging or otherwise improving such street in exchange for any part of such street which shall front other land belonging to such owner and shall be behind the general line of such street and which shall in the opinion of the Council be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights of way over any portion of any street so exchanged shall be extinguished. Exchange
of parts
of streets
disused.

42.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Council by virtue of any enactments or byelaws with respect to streets and ~~and in force within the district~~ distinctly define and mark on a plan drawn to such scale as the Council may require and to be prepared and submitted by such person to the Council for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line"). Building line
in new
streets.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Council nor beyond or in front of the building line approved by the Council and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Council.

(4) In the event of the Council requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. centre of the street than one half of the width of the street and six feet in addition the Council shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Council determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Develop-
ment scheme
may be
required in
connexion
with new
streets.

43. Whenever application shall be made to the Council to approve the laying out of or notice shall be given to the Council of the intention to lay out a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) the Council may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Council with plans and particulars showing the general scheme for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

Appeal to
petty
sessional
court.

44.—(1) Any person deeming himself aggrieved by any requirement of or by the Council under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

[9 & 10. GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

45. The Council may make byelaws with respect to the following matters (viz.):— A.D. 1919.

- (1) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act: Byelaws as to materials and construction of buildings.
- (2) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connexion therewith and as to the occupation of buildings when united:
- (3) The testing of drains of new buildings:

Provided that any byelaws made under subsections (1) and (2) of this section shall not apply to premises of the Stretford Gas Company used for the manufacture of gas.

46. Section 157 of the Public Health Act 1875 shall be extended so as to empower the Council to make byelaws for securing the adequate lighting of staircases passages and lobbies in new buildings and in cases where structural alterations are proposed to be made of staircases passages and lobbies of existing buildings. Byelaws as to admission of light to buildings.

47.—(1) ~~In case any building is at any time after the~~ passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Erection of buildings to greater height than adjoining buildings.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

48.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building or of any works in the district shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such construction reconstruction or alteration such water. Sanitary conveniences for workmen engaged on buildings.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. or other closets and urinals in or in connexion with such building or works as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Means of
escape from
buildings in
case of fire.

49.—(1) Every new building exceeding two storeys in height used or intended to be used as flats or as a tavern hotel restaurant hospital boarding-house common lodging-house or school or as a shop in which building sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop shall be provided on each of the storeys above the second storey (hereinafter referred to as the "upper storey") with such means of escape in the case of fire for the persons dwelling sleeping or employed in each upper storey or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) From and after the first day of January one thousand nine hundred and twenty the Council in the case of every existing building exceeding two storeys in height and used or intended to be used as a shop and in which building sleeping accommodation is or is intended to be provided if in their opinion such building is not provided with proper and sufficient means of escape from each upper storey in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

Any person aggrieved by any requirement of the Council under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and award costs.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

Notice of the right to appeal shall be endorsed on every requirement of the Council under this subsection. A.D. 1919.

(3) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(4) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(5) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

50.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Council ~~may make an order upon the owner thereof~~ requiring him within a reasonable time to be prescribed by the order either to put such building (in this section referred to as a "neglected structure") into a state of repair and good condition to the satisfaction of the Council or to take down the same and in addition to or in substitution for the foregoing order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

Power to
require
repair or
taking down
of dilapi-
dated
buildings.

(2) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Council in executing the order may remove the materials to a convenient place and (unless the expenses of the Council under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 Geo. 5.]
Act, 1919.

A.D. 1919.

(4) All expenses incurred by the Council under this section in relation to a neglected structure may be deducted by the Council from the proceeds of the sale and the surplus (if any) shall be paid by the Council on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Council or if the proceeds of the sale are insufficient to defray the said expenses the Council may recover such expenses or such insufficiency from the owner of the neglected structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

Area of
habitable
rooms.

51. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the district shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Food storage
accommo-
dation to be
provided.

52.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2)—(A) Every dwelling-house erected before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(B) Any person aggrieved by any requirement of the Council under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Council under this subsection.

[9 & 10 Geo. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

53. Section 128 (General provisions as to byelaws) of the Act of 1904 shall apply to all byelaws made under this Part of this Act.

A.D. 1919.

Application of
 section 128 of
 Act of 1904.

54. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company in connexion with their railway under any Act of Parliament.

General
 saving as to
 railway
 companies.

55. The provisions of the sections of this Part of this Act of which the marginal notes are "Intersecting streets" "Widening of roads when only one side is built upon" "Building line in new streets" and "Development scheme may be required in connexion with new streets" shall not apply to any street or road within the area hereinafter defined in which no buildings other than premises used solely for industrial purposes are constructed or intended to be constructed. The area referred to in this section is situate within the district and comprises in all one hundred and seventy-four acres or thereabouts and is bounded on or towards the north by the Bridgewater Canal on or towards the south in part by the Cheshire Lines Railway and in part by Carr's Ditch and on or towards the west by the boundary of the district and is more particularly delineated on a map signed in duplicate by Sir William Middlebrook the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which map has been deposited in the Private Bill Office of the House of Commons and one in the Parliament Office of the House of Lords).

Saving for
 De Trafford
 Estate.

56. Nothing in the sections of this Part of this Act of which the marginal notes are "Intersecting streets" "Widening of roads when only one side is built upon" "Building line in new streets" and "Development scheme may be required in connexion with new streets" shall apply within the portion within the district of the area known as Trafford Park as defined in section 4 of the Trafford Park Act 1904 and the remaining provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by the Trafford Park Company in connexion with their railways under any Act of Parliament or any Order having the effect of an Act of Parliament.

Saving for
 Trafford
 Park Com-
 pany.

A.D. 1919.

PART V.

WATERCOURSES.

Water-
courses not
to be covered
over except
in accord-
ance with
approved
plans.

57.—(1) Before the owner of any land within the district shall culvert, or cover over any watercourse thereon forming part of the natural drainage of the area involved he shall submit for the approval of the Council plans sections and specifications of such watercourse and the method of culverting or covering over the same and the Council may subject as hereinafter provided require such owner so to construct and maintain any such culvert or so to cover over and maintain any such watercourse as to secure the free and uninterrupted passage of the water flowing in any such watercourse:

Provided that—

(A) No requirement of the Council under this section shall operate or compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;

(B) If with the consent of such owner the Council shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Council.

(2) If any difference shall arise between the Council and such owner as to the expediency necessity or otherwise of the works required by the Council to be executed or otherwise under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Water-
courses
choked up to
be a nuisance
under Public
Health Act
1875.

58. Any river stream or watercourse or any part or parts thereof respectively within the district so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health. A.D. 1919.

PART VI.

SEWERS DRAINS &c.

59. Every person who wilfully or negligently turns or permits to enter into any sewer of the Council or any drain communicating therewith any petrol oil or other like deleterious substances from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Prohibiting entry of petrol &c. into sewers.

60. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Council it shall be lawful for the Council if in their opinion such drain can be sufficiently repaired at a cost not exceeding twenty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine Provided that where such expenses do not exceed twenty shillings the Council may remit the payment of the same by the owner or owners if they think fit. As to repair of private drains.

61. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

62. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation Power to lay drains in private streets.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. to be ascertained by and recovered before a court of summary jurisdiction.

Council to make communication between drains and sewers.

63. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication may be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Power to reconstruct drain if laid in contravention of Public Health Act 1875.

64. Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the court may in addition to imposing a penalty under that section order that the drain shall be laid relaid or amended or remade as the case may require in accordance with the provisions of that section and if such person shall not comply with the order within one month after the date thereof the Council may cause the drain in respect of which such conviction has been obtained to be laid relaid or amended or remade as the case may require and may recover from such person in a summary manner as a civil debt the expenses incurred by them in so doing.

Notice of intention to repair drains.

65.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by him for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Street orderly bins.

66. The Council may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the district of such dimensions and in such positions as the Council may from time to time determine.

67.—(1) The soil-pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Council shall direct. A.D. 1919.
Soil-pipes to be ventilated.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. The Council may require the occupier to comply with the requirements of this section.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

68. If any person not less than sixteen years of age while suffering from any infectious disease wilfully exposes himself without proper precautions against spreading the disease in any place of public resort shop inn or any public conveyance or being in charge of any person so suffering wilfully exposes such sufferer he shall be liable to a penalty not exceeding five pounds. For preventing spread of infectious disease.

69.—(1) If the Council or a committee of the Council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the district require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time such requirement shall be at once complied with. Power to close Sunday schools to prevent spread of infectious disease.

(2) Any person responsible for the conduct or management of any Sunday school wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

70. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes whooping-cough and chicken-pox. Extended meaning of "infectious disease" for certain purposes.

71.—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of Information to be furnished as to infectious disease.

[Ch. lxvii.] *Stretford Urban District Council* [9. & 10 Geo. 5.]
Act, 1919.

A.D. 1919. such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

For preventing
contact with
body of person
dying of infec-
tious disease.

72. Any person who being in charge of the body of any person who has died from any infectious disease shall permit or allow any other person unnecessarily to come into contact with such body shall be liable to a penalty not exceeding five pounds.

Disinfection
in case of
tuberculosis.

73.—(1) (A) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any boat tent shed or similar structure used for human habitation) or any part thereof would tend to prevent or check tuberculosis the clerk shall give notice in writing to the owner or occupier of such building that the same or such part thereof will be cleansed and disinfected by and at the cost of the Council unless the owner or occupier of such building informs the Council within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice.

If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Council as aforesaid or if having so informed the Council as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Council under the superintendence of the medical officer:

Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Council under the superintendence of the medical officer.

(B) For the purpose of carrying into effect the provisions of this subsection the Council may by any officer who shall be

authorised in that behalf in writing under the hand of the clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon. A.D. 1919.

(c) Every person who shall wilfully obstruct any duly authorised officer of the Council in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and if the offence is a continuing one to a daily penalty not exceeding twenty shillings.

(2)—(A) The medical officer if generally empowered by the Council in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Council for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(B) Such articles books things bedding and clothing shall be disinfected by the Council and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the exercise by the Council of any of the powers of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Council and the amount of compensation shall be recoverable in and in case of dispute may be settled by a court of summary jurisdiction.

74.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the

Removal
of person
suffering
from
pulmonary
tuberculosis
to hospital.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. sick provided within the district or within a convenient distance of the district and for the detention and maintenance of such persons therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

(2) The medical officer shall give to the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Council may in their discretion during the period of detention make payments for or towards the effective support and maintenance of the relatives of or those actually dependent upon any person so suffering and removed to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Council will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

(4) An order under this section may be addressed to such constable or officer of the Council as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Local Government Board which order the Local Government Board are hereby empowered to make. A.D. 1919.

75.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who within the district—

For regula-
ting manu-
facture and
sale of ice-
cream &c.

(A) causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding five pounds.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4)—(A) The medical officer and the inspector of nuisances and any other officer who is duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(B) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Establish-
ment &c. of
offensive
trades.

76. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Council but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Rag and
bone dealers
not to sell
food.

77.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of rag and bone merchant or any person acting on behalf of any such person as aforesaid to sell or distribute within the district any articles of food from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connexion with the business of rag and bone merchants.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

(2) Every person who shall offend against this section shall be liable to a penalty not exceeding five pounds. A.D. 1919.

78.—(1) If the medical officer or the inspector of nuisances has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin. Houses infested with vermin to be cleansed.

(2) Where on the certificate of the medical officer or the inspector of nuisances it appears to the Council that any house is infested with vermin the Council shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a fine not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Council may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Council in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Council in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Council was reasonable and as to whether the costs and expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Cleansing of
verminous
persons.

79.—(1) The Council may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who or (where the person is a child) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where two justices on the application of the Council and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Council shall in every case cause the removal and detention to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Council or under an order of such justices shall cease his employment in order to comply with such order the Council may and in case of an order of the justices shall make compensation to him for any loss he may suffer thereby.

(4) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river dock canal or other water within the district and used for the like purpose.

Medical
examination
of inmates of

80. Whenever the medical officer shall report in writing to the Council or to a committee of the Council authorised for

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

this purpose by the Council that there is a prevalence of dangerous infectious disease in the district or in any adjoining or neighbouring district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the district by persons resorting to common lodging-houses the Council or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the district for such period as the Council or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say):—

A.D. 1919.

common
lodging-
houses &c.
when infec-
tious disease
prevails.

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Council or of such committee as aforesaid may exist or has recently existed in any common lodging-house in the district medically examine any person found in any common lodging-house in the district with a view to ascertaining whether such person is suffering or has recently suffered from such disease Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Council or such committee as aforesaid to every keeper of a registered common lodging-house in the district and to the Local Government Board :
- (3) Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

A.D. 1919.
Public notice
to be given
of provisions
of this Part
of Act.

81.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

FINANCIAL.

Power to
borrow.

82.—(1) The Council may from time to time independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

(A) For and in connexion with the purchase of the Trafford Power Company's undertaking the sum of two hundred and forty thousand pounds:

(B) For and in connexion with the provision and running of omnibuses and for the purchase of lands and construction of buildings such sums as the Local Government Board may sanction:

(c) For payment of the costs charges and expenses of this Act the sum requisite for that purpose.

The Council may also with the consent of the Local Government Board borrow such further money as the Council may require for their electricity undertaking or for any of the purposes of this Act.

(2) All moneys borrowed by the Council under this Act shall be paid off within the respective periods (each of which is in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purpose (A) above mentioned within thirty years from the date of borrowing the same:

As to moneys borrowed for the purpose (c) above mentioned within five years from the date of the passing of this Act:

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction. A.D. 1919.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purpose (A) hereinbefore mentioned the revenue of the electricity undertaking and the district fund and general district rate:

As regards moneys borrowed for the purpose (B) hereinbefore mentioned the revenue of the omnibus undertaking and the district fund and general district rate:

As regards moneys borrowed for the purpose (C) hereinbefore mentioned the district fund and general district rate:

As regards other moneys borrowed with the consent of the Local Government Board such fund rate or revenue as the Board may prescribe.

The provisions of this subsection shall not limit the powers conferred upon the Council by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes."

(4) In calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned and the power of the Council of borrowing and re-borrowing under and for the purposes of this Act shall not be restricted by any of the provisions or regulations of the Public Health Acts.

83. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable. Application of money borrowed.

84. The following provisions of the Act of 1904 (namely):— Application of certain sections of Act of 1904.
Section 107 (Provisions as to mortgages);
Section 115 (Protection of lenders from inquiry);
Section 133 (Inquiries and expenses of Local Government Board);

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 Geo. 5.]
Act, 1919.

A.D. 1919. — shall subject to the provisions of this Act extend and apply mutatis mutandis to and in the case of moneys to be borrowed under the provisions of this Act and such sections shall be incorporated in this Act and be read and have effect as if they had reference to money borrowed under the powers of this Act.

As to
temporary
borrowing.

85.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a local education or sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their tramway or electricity undertakings and after the commencement of such year it shall be lawful for the Council to borrow by way of temporary loan or overdraft from any bank such sums as they may from time to time resolve not exceeding in each case an amount equal to one-third of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking in respect of which it is borrowed as the same may be specified in the resolution of the Council authorising such borrowing *pari passu* with any Council stock bond or mortgage affecting the same and it shall further be lawful for the Council to utilise for providing temporarily for any such expenses any sinking funds which they may have in hand crediting the said sinking funds with such fair rate of interest not being less than three pounds per centum per annum as they may resolve Provided that—

(A) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within three months after the expiration of such financial year :

(B) The treasurer shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit. A.D. 1919.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and twenty unless they shall have been continued by Act of Parliament or by an order made by the Local Government Board which order the Local Government Board are hereby empowered to make and in the event of that Board making any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

86. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of raising money.

87. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them. Mode of payment off of money borrowed.

88.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either— Sinking fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

- (B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or in accordance with the provisions of the section of this Act of which the marginal note is "Power to use sinking fund instead of borrowing" be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1919.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appear to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appear to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to
use one form
of mortgage
for all pur-
poses.

89.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted. A.D. 1919.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrowing.

90.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund;

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly. A.D. 1919.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans' Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

91.—(1) The Council shall have power—

Power to
re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 113 (Power to re-borrow) of the Act of 1904 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Power to
invest
sinking funds
in statutory
securities.

92. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Returns as
to sinking
funds.

93.—(1) The clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Council in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court. A.D. 1919.

(2) If it appears to the Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

94.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more equated periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for
fixed equated
periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Rates may be amended to accord with new or supplementary valuation list.

95. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Council to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

Power to grant gratuities in certain cases.

96.—(1) The Council may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers (Superannuation) Act 1918 grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Council as the local education authority for the district or permanently and exclusively employed in any public elementary school in the district (whether provided by the Council as the local education

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

authority or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Council as the local education authority for the purposes of Part II. of the Education Act 1902. A.D. 1919.

97. All expenses incurred by the Council in carrying into execution the provisions of this Act and not otherwise expressly provided for shall be defrayed as expenses under the Public Health Act 1875. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable. Expenses of executing Act.

PART IX.

MISCELLANEOUS.

98. Nothing in the sections of this Act hereinafter mentioned shall apply to any work constructed or to be constructed by the Great Central Railway Company or the Great Central and North Western Railways Joint Committee or the Cheshire Lines Committee (which bodies are in this section referred to severally or jointly as "the railway company") as a part of or for the purposes of their railway under any statutory powers or to any lands held or acquired or which may hereafter be held or acquired by the railway company and used for the purposes (other than for a dwelling-house) of their railway with the authority of Parliament. For protection of certain railway companies.

The sections of this Act hereinbefore referred to have the following marginal notes :—

Intersecting streets;

Widening of roads when only one side is built upon;

Building line in new streets;

Development scheme may be required in connexion with new streets;

Watercourses not to be covered over except in accordance with approved plans;

As to repair of private drains;

Power to reconstruct drain if laid in contravention of Public Health Act 1875;

Notice of intention to repair drains.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

For protec-
tion of Man-
chester Ship
Canal
Company.

99. The following provisions for the protection of the Manchester Ship Canal Company (in this section called "the canal company") shall notwithstanding anything in this Act contained apply and have effect except so far as may be otherwise agreed in writing under seal between the canal company and the Council:—

- (1) The Council shall not permit the bridge referred to in the grant of easement of the fourteenth day of December one thousand nine hundred and eighteen to be used otherwise than by the employees workmen and agents of the Council for the purpose of communication between the premises now belonging to the Trafford Power Company which are situated on the north and south sides respectively of the Bridgewater Canal and the public shall not use the said bridge:
- (2) The Council shall not without the consent in writing of the canal company place above ground any electric lines affecting or being on nor attach any bracket wires and apparatus to any canals works or property of the canal company:
- (3) The provisions of the section of this Act of which the marginal note is "Watercourses not to be covered over except in accordance with approved plans" shall not apply to any watercourses so far as the same may pass through or be on any lands belonging to the canal company:
- (4) The powers conferred upon the Council by the sections of this Act of which the respective marginal notes are "As to repair of private drains" "Power to lay drains in private streets" and "Council to make communication between drains and sewers" shall not apply to any drains lands works or property belonging to the canal company:
- (5) The provisions of the section of this Act of which the marginal note is "Ejection of steam and waste gas to annoyance of public" shall not apply to any vessels ships locomotives boilers engines or cranes upon the undertaking of the canal company:

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

- (6) Notwithstanding anything in this Act contained the A.D. 1919.
Council shall be responsible for and make good to the canal company all losses damages and injury of every description and howsoever occurring to persons or property which may be sustained and all costs and charges which may be reasonably incurred by the canal company by or in consequence of the erection construction laying maintenance alteration improvement enlargement extension renewal user or failure of any works authorised by Part II. of this Act or by or in consequence of any act or omission of the Council or any person in their employment or their contractors or agents in relation to any such works and the Council shall effectually indemnify and hold harmless the canal company from all such losses costs charges damages or injury as aforesaid and from all claims and proceedings in respect thereof:
- (7) Nothing in the sections of Part IV. of this Act of which the marginal notes are "Intersecting streets" "Widening of roads when only one side is built upon" "Building line in new streets" and "Development scheme may be required in connexion with new streets" shall apply to the Dock Estate of the canal company and the remaining provisions of Part IV. of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to the canal company in connexion with their undertaking:
- (8) If any difference shall arise between the Council and the canal company (the settlement whereof is not otherwise provided for) touching any of the matters referred to in this section (other than any matter in respect of which the canal company are by this section empowered to give or withhold consent at their discretion) or anything to be done or not to be done thereunder such difference shall be referred to and determined by an engineer to be nominated by the Council and the canal company or failing agreement between them to be appointed by the President of the Institution of Civil Engineers on the application of the Council or the canal company after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such determination.

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

Penalty for
crying news-
papers on
Sunday.

100. Every person who shall on Sunday in any street or public place call or shout or ring any bell or use any other noisy instrument for the purpose of selling or advertising any newspaper journal or serial shall for every such offence be liable to a penalty not exceeding forty shillings.

Fire alarms.

101. The Council may erect or fix street fire alarms in such positions in any street road or public place within the district as they think fit Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Ejection of
steam and
waste gas to
annoyance of
public.

102. All steam or waste gas ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Boilers &c.
not to be
tapped or
blown off
direct into
sewer.

103.—(1) From and after the passing of this Act it shall not be lawful for any person to tap or blow off any steam boiler in connexion with any premises where any trade or manufacture is carried on at a greater pressure than twenty pounds or to discharge the water from any dye-pan or other receptacle into any sewer of the Council unless the water in such boiler or dye-pan or receptacle shall have been so cooled as effectually to prevent any steam from such water being emitted in any street manhole gully or other drain opening in connexion with such sewer.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding twenty shillings.

Power to
enter
premises.

104. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part IV. (Streets and Buildings) Part V. (Water-courses) Part VI. (Sewers Drains &c.) and Part VII. (Infectious

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

Disease and Sanitary Provisions) of this Act as if those purposes had been mentioned in the said section 102. A.D. 1919.

105. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. As to breach of conditions of consent of Council.

106. All consents given by the Council under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk or other duly authorised officer of the Council. Consent of Council to be in writing.

107. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

108. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing (not being undertakers under any Act or Order made under the Tramways Act 1870 the Light Railways Act 1896 or the Electric Lighting Acts 1882 to 1909) the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly. In executing works for owner Council liable for negligence only.

109. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or of any committee of the Council Evidence of appointments authority &c.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentica-
tion and
service of
notices &c.

110.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Damages
and charges
to be settled
by justices.

111. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Apportion-
ment of
expenses in
case of joint
owners.

112. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. A.D. 1919.

113. Proceedings for the recovery of any demand made under the authority of this Act or under the authority of the Act of 1904 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

114. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk. Informations by whom to be laid.

115. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer of the Council and be by him carried to the credit of the district fund or to such other fund as the Council shall direct. Penalties to be paid over to treasurer.

116. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

117. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

118. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee (as the case may Powers of Act cumulative.

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. be) may exercise such other powers and be entitled to such
-- other rights and remedies as if this Act had not been passed
Provided that no person shall incur more than one penalty
(other than a daily penalty for a continuing offence) for the
commission of the same offence.

Summons or
warrant may
contain
several sums.

119. Where the payment of more than one sum by any
person is due under this Act or under the Act of 1904 any
summons or warrant issued for the purposes of such Acts in
respect of that person may contain in the body thereof or in a
schedule thereto all the sums payable by him.

Incorporation of
certain
sections of
Act of 1904.

120. The following sections of the Act of 1904 are incorporated with this Act and shall apply as if the same with the
necessary modifications were set out in this Act namely:—

Section 129 (Compensation how to be determined);

Section 131 (Recovery of penalties);

Section 132 (As to appeal);

Section 134 (Crown rights).

Costs of
Act.

121. The costs charges and expenses preliminary to and
of and incidental to preparing and obtaining this Act including
the costs charges and expenses preliminary to and of and
connected with the compliance with the requirements of the
Borough Funds Acts 1872 and 1903 shall after taxation by the
taxing officer of the House of Lords or of the House of
Commons be paid by the Council out of the district fund and
general district rate or out of moneys to be borrowed by the
Council under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

FIRST SCHEDULE.

AN AGREEMENT made the fourteenth day of December one thousand nine hundred and eighteen between the TRAFFORD POWER AND LIGHT SUPPLY (1902) LIMITED (hereinafter called "the Company") of the first part the URBAN DISTRICT COUNCIL OF STRETFORD in the county of Lancaster (hereinafter called "the Council") of the second part and W. T. GLOVER AND COMPANY LIMITED whose registered office is in Trafford Park of the third part.

WHEREAS the Company was incorporated in the year one thousand nine hundred and two under the Companies Acts 1862 to 1900 for the purpose of supplying electricity and gas and by the memorandum of association of the Company it was declared that one of the objects of the Company was to sell the undertaking property and assets of the Company or any part or parts thereof:

And whereas the Company is supplying electricity within the area known as Trafford Park (as defined in section 4 of the Trafford Park Act 1904) and elsewhere in the county of Lancaster and for that purpose has erected works and acquired lands easements wayleaves rights powers liberties and privileges and has entered into various contracts for the acquisition of further land easements and rights and has entered into many contracts to supply electricity to customers:

And whereas the Council is desirous of acquiring the properties easements wayleaves rights powers liberties privileges and assets of the Company hereinafter set out:

And whereas W. T. Glover and Company Limited is a shareholder of the Company having a large voting power:

Now therefore it is hereby agreed as follows:—

1. Subject as hereinafter mentioned the Company shall sell and the Council shall purchase the following assets of the Company all of which are hereinafter referred to as "the said premises":—

(A) The freehold and leasehold lands and hereditaments particulars of which are set out in the First Schedule hereto subject to the several rents covenants conditions exceptions and reservations in such schedule mentioned or referred to

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

Together with the buildings erections and railway siding erected and being on such lands or parts thereof:

- (B) All fixed and loose machinery plant cables tools instruments furniture and fittings belonging to the Company on the date of sale not being tools engineering implements and things in stock or store:
- (C) The stock of coal coke oil stationery and miscellaneous tools engineering implements and things in stock or store belonging to the Company on the date of sale:
- (D) All easements wayleaves rights powers liberties and privileges (including the benefit of all contracts (if any) which may hereafter be entered into by the Company for the acquisition of real or personal property and which shall not have been completed at the date of completion) belonging to the Company or which the Company shall be entitled to on the date of sale under and by virtue of the various Acts of Parliament provisional and other orders deeds documents and agreements particulars of which are set out in the Second Schedule hereto and all other easements wayleaves rights powers liberties and privileges belonging to the Company or which the Company shall be entitled to on the date of sale so far as all the foregoing shall then be in existence but subject to the payment of the various rents and the observance and performance of the respective liabilities obligations covenants conditions and agreements on the part of the Company to be paid observed and performed for or in connexion therewith. The Council shall be deemed to have full notice of all the rents covenants conditions agreements liabilities obligations and engagements contained in the said Acts of Parliament provisional and other orders deeds documents and agreements set out in the Second Schedule hereto and generally of the terms and contents thereof:
- (E) The benefit of all contracts obligations and engagements entered into by the Company in connexion with the carrying on of the business of generating distributing and supplying electrical energy and fuel gas which shall be in existence on the date of sale (as hereinafter defined) subject to the payment of the various rents and to the observance and performance of the respective covenants conditions agreements liabilities obligations and engagements on the part of the Company to be paid observed and performed in connexion therewith. The Council shall

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii.]
Act, 1919.

be deemed to have full notice of all the covenants conditions agreements liabilities obligations and engagements contained in such contracts and generally of the terms and contents thereof. A.D. 1919.

2. As part of the consideration for the said sale the Council shall pay to the Company in respect of items of property above described (A) (B) (D) and (E) (not including however Number 9 of the First Schedule the price of which—if payable at all—will be included in the sum payable under clause 12 hereof) the sum of one hundred and eighty-four thousand three hundred and forty-two pounds twelve shillings and one penny and in respect of item (C) the market value as on the day of sale of the stock of coal coke oil stationery and miscellaneous tools engineering implements and things therein described.

3. As the residue of the consideration for the said sale the Council for themselves and their assigns shall covenant with the Company their successors and assigns as from the date of sale to pay the rents and observe and perform the covenants conditions and agreements under or subject to which the hereditaments set out in the First Schedule hereto are held and also to pay all the rents (including all moneys which shall not then have accrued due on capital account and shall still remain to be paid under any agreement for the purchase or acquisition of any real or personal property) satisfy discharge observe perform and fulfil all the covenants conditions agreements liabilities obligations and engagements which are imposed by or contained in (1) the various Acts of Parliament provisional and other orders deeds documents and agreements creating or conferring the easements way-leaves rights powers liberties privileges and benefits referred to in clause (1) (D) hereof and (2) in the contracts obligations and engagements referred to in clause 1 (E) hereof so far as the same shall remain to be paid satisfied discharged observed performed and fulfilled.

4. The purchase shall be completed and the purchase moneys paid at the office of the Company's solicitors Messrs. Claremont Haynes and Company of Vernon House Sicilian Avenue Bloomsbury Square London upon the date of sale and thereupon the Company and all other necessary parties shall at the cost of the Council as hereinafter provided execute and do all such assurances and things for vesting the said premises in the Council and giving to it the full benefit of this agreement as shall be reasonably required by the Council.

The expression the "date of sale" for all purposes of this agreement shall be taken to be whichever of the two days hereinafter described shall be later in date that is to say (1) the last day of the three calendar months following the calendar month in which the Act

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. of Parliament hereinafter referred to shall receive the Royal Assent and (2) the last day of the six calendar months following the calendar month in which either (A) the Treasury shall consent to the Council borrowing the money necessary to complete the purchase or (B) the necessity of obtaining such consent shall be removed.

5. If from any cause whatever the purchase shall not be completed on the date of sale the Council shall pay interest upon the purchase money from that day until the actual date of completion at the rate of six pounds per cent. per annum such interest to be paid quarterly on the usual quarter days.

6. Up to the date of sale the Company shall continue to carry on its undertaking and business in the same manner as heretofore for its own benefit and at its own risk and it shall be lawful for them to enter into all such contracts as they may think fit in the course of and for the purpose of carrying on and reasonably developing their said business upon similar lines to those in which it has hitherto been carried on and the benefit of all such contracts if any shall be included in the sale and the Council as from the date of sale shall perform and observe all the obligations thereof.

7. In case the purchase shall not be completed on the date of sale possession of the said premises shall be retained by the Company up to the actual date of completion and as from the date of sale to the actual date of completion the Company shall carry on the said undertaking and business in the same manner as before the date of sale and shall be deemed to be carrying on the same on behalf of the Council and shall account and shall be entitled to be indemnified accordingly.

8. All rents money payable for wayleaves rates taxes insurance premiums and other outgoings and all moneys payable by consumers for the supply of electrical energy and other incomings shall be apportioned up to the date of sale and an account made out of the same The balance due on such apportionment account shall be paid or allowed on completion by or to the Council as the case may require In cases in which it is not possible on completion to make out an apportionment of moneys payable to the Company as aforesaid the Council shall collect such moneys when they become due and render a monthly account thereof to the Company.

9. The said premises are sold subject as before stated and to all rights relating to main party division or boundary walls or fences drains ways water lights and other easements.

10. Objections to and requisitions on title and in respect of all matters appearing in the abstract or herein shall be delivered at or sent by post to the office of the Company's solicitors Messrs. Claremont

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

Haynes and Company within twenty-eight days from the delivery of the abstract and all further objections and requisitions arising out of the replies to any former requisitions shall be sent within ten days from the delivery of such replies and in this respect time shall be of the essence of the contract but the Company's solicitors may extend any such times. A.D. 1919.

11. The title to the hereditaments set out in the First Schedule hereto shall commence—

- (A) As to the hereditaments numbered 1 in such schedule with an indenture of conveyance dated the thirty-first day of December one thousand eight hundred and ninety-eight made between Trafford Park Estates Limited of the first part Lord Churchill and Mackworth Praed of the second part W. T. Glover and Company Limited of the third part and John Broadfield Parkinson of the fourth part:
- (B) As to the hereditaments numbered 2 in such schedule with an indenture of conveyance dated the first day of June one thousand eight hundred and ninety-nine and made between Trafford Park Estates Limited of the first part Lord Churchill and Mackworth Praed of the second part and William Henry Bailey of the third part:
- (C) As to the hereditaments numbered 3 and 4 in such schedule with two conveyances thereof respectively both dated the seventh day of October one thousand nine hundred and fourteen and made between Viscount Churchill and Herbert Haynes Twining of the first part Trafford Park Estates Limited of the second part the Company of the third part and Edward Lawrence Baddeley of the fourth part:
- (D) As to the hereditaments numbered 5 in such schedule with the conveyance thereof dated the twenty-sixth day of February one thousand nine hundred and sixteen and made between Grain Elevator Estate Limited of the first part the Company of the second part and Albert William Claremont of the third part:
- (E) As to the leasehold hereditaments numbered 6 in such schedule with the lease thereof dated the thirtieth day of December one thousand nine hundred and fifteen and made between the Manchester Dry Docks Company Limited of the one part and the Company of the other part:
- (F) As to any hereditaments purchased by the Company subsequent to the date of this agreement with the conveyance or conveyances to the Company.

[Ch. lxxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

12. In addition to all other moneys payable by the Council the Council shall pay to the Company on completion (together with interest thereon at the rate of six pounds per centum per annum from the date of sale to the date of payment thereof) all moneys expended by the Company on capital account from the thirty-first day of March one thousand nine hundred and eighteen to the actual date of completion provided that the consent in writing of the Council shall be previously obtained to the incurring after the date hereof of such expenditure but such consent shall not be unreasonably withheld and further shall not be withheld if it shall be reasonable for the Company having regard to its interest as a private company to make such expenditure including purchase money paid on or in respect of the purchase or acquisition of lands numbered 9 in the said First Schedule and all expenses incident to the acquisition of any such lands. If any dispute or question shall arise as to the aggregate amount of the moneys so expended the same shall be referred to arbitration under clause 20 hereof. If in the ordinary course of carrying on its undertaking and business after the date hereof the Company shall have to raise or borrow money in connexion with expenditure on capital account (which expenditure shall have or ought to have been sanctioned by the Council) the Council shall in addition to interest thereon at the rate of six pounds per centum per annum as aforesaid pay to the Company any interest in excess thereof that the Company may have to pay and all charges and expenses incurred by the Company in raising or borrowing such money.

13. After the date hereof the Company shall not enter into any contract for supplying electric energy below the rates now charged for similar supplies under existing contracts without the consent of the Council but such consent shall not be unreasonably withheld. Provided that nothing herein shall prevent the Company from complying with the provisions as to charges for supply contained in the indenture dated the twentieth day of January one thousand nine hundred and two referred to in the Second Schedule hereto.

14. The conveyance of the property hereby agreed to be sold shall contain a covenant on the part of the Council for and on behalf of itself and successors in title in favour of W. T. Glover and Company Limited who shall be made a party to such conveyance that the Council will not nor will its successors in title of any of the lands so conveyed at any time after the date thereof use for condensing purposes any cooling tower or other device which may hereafter be erected on any of the lands conveyed under these presents or on any other land within three hundred yards of the land and premises now in the occupation of W. T. Glover and Company Limited and adjoining the plot of land on which the power station of the Company in Trafford

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

Park Road is erected except in the events and then on and subject to A.D. 1919.
the conditions set out below:—

- (A) It shall be lawful for the Council to use any such cooling towers if (a) the Manchester Ship Canal Company shall be entitled under the provisions contained in a deed dated the fourteenth day of December one thousand nine hundred and eighteen made between that company of the first part and the Company of the second part to and shall suspend the right of the Council to take and use water from the Bridgewater Canal for condensing purposes or (b) the water in the said canal shall be below the level of the uppermost edge of the orifice of the intake opening shown on the drawing signed (for the purposes of identification) by Mr. Alexander Lawson Ormrod chairman of the board of directors of W. T. Glover and Company Limited and Thomas Benjamin Finney on behalf of the Council or (c) consequent on some accident to the condensing plant of the Council the Council shall be unable to use the water from the canal for condensing purposes:
- (B) The right to use cooling towers shall continue for so long only as the event upon which the right to use the same arose shall continue to prevail:
- (c) If the right to use cooling towers shall have arisen consequent upon an accident to the said condensing plant (which the Council shall be deemed to be under covenant with W. T. Glover and Company Limited to keep in working order) the Council shall pay to W. T. Glover and Company Limited by way of liquidated damages for the failure to keep such plant in working order the sum of fifty pounds in respect of every day on which any cooling tower or towers shall be used except however that the Council shall not be bound to make any such payment in respect of any day on which a cooling tower or towers shall be used if there shall not have been any user of a cooling tower or towers during the period of three calendar months then last past and except further that no liability to such payment as aforesaid shall be incurred by reason of the user of any such cooling tower or towers between the hours of twelve midday on any Saturday and six a.m. on the following Monday.

Nothing in this clause shall be construed as a waiver by W. T. Glover and Company Limited of any remedies at law or in equity in respect of any nuisance.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

15. W. T. Glover and Company Limited as a large shareholder of the Company will exercise its voting power to cause this agreement to be approved by the Company at a meeting to be called pursuant to clause number 22 hereof and to prevent such Company from appearing to oppose the Bill referred to in the next succeeding clause hereof.

16. The Council shall forthwith promote a Bill in Parliament to confirm this agreement and authorise the Council and the Company to carry it into effect and also to authorise the Council to supply electricity in Trafford Park for all public and private purposes and the Council shall use its best endeavours to obtain an Act for the purposes aforesaid and the Company shall at the request in writing of the Council procure such evidence as it can in support of such Bill.

17. Whether such Bill shall be passed or not the Council shall pay to the Company the reasonable legal costs charges and expenses incurred by the Company in obtaining advice in reference to and in negotiations for and in the preparation and execution of this agreement which costs charges and expenses including all such counsel's fees as may be incurred by or on behalf of the Company are hereby agreed at two hundred guineas and also the reasonable costs charges and expenses properly incurred by the Company in providing such evidence as aforesaid and in being advised and represented by solicitors and counsel in all matters in connexion with the said Bill including the hearing thereof in committee in both Houses of Parliament.

18. In addition to the costs charges expenses and fees to be paid by the Council under the last preceding clause hereof the Council shall (1) on completion of the purchase of the said premises pay the reasonable costs charges expenses and fees of the Company for deducing the title to the said premises and perusing and completing the assurances thereof to the Council which costs charges expenses and fees are hereby agreed at the sum of three hundred guineas which sum shall include all such counsel's fees as may be incurred by or on behalf of the Company in connexion therewith and also the costs charges expenses and fees of the Company's debenture stockholders and their trustees and the company's debenture-holders in connexion with the release of the said premises from their respective securities and (2) subsequently as soon as the same shall be ascertained the legal costs charges and expenses and all other expenses of and incident to the going into liquidation and winding-up of the Company.

19. After the completion of the purchase of the said premises the Company shall not supply electrical energy or fuel gas within or for use within Trafford Park or any other district within which the Council are for the time being authorised to supply electrical energy or fuel gas.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

20. It is hereby agreed and declared that any and every dispute difference or question which shall at any time arise between the parties hereto touching the construction meaning and effect of these presents or any clause or thing herein contained or the rights or liabilities of the said parties respectively under these presents or otherwise howsoever in relation to the premises including the question as to whether any withholding of consent by the Council under clauses 12 and 13 is unreasonable or improper shall be referred to the decision of the President for the time being of the Institute of Civil Engineers or some person to be appointed by him and this shall be deemed to be a submission to arbitration within the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force the provisions whereof shall apply as far as applicable. A.D. 1919.

21. This agreement is subject to such alterations as Parliament may think fit to make therein Provided that if either House of Parliament shall make any material alteration in this agreement it shall be competent to either party by notice in writing to determine the same but without prejudice to clause 17 hereof But it shall not be competent for the Council to determine this agreement by reason of any condition or stipulation being inserted or required to be inserted by either of the Houses of Parliament or of the committee to whom the Bill may be referred to the effect that any other public corporation shall have the right absolute or contingent of acquiring such part of the Company's cables and apparatus as lies within the district of such other public corporation and all benefits (but subject to the obligations) of the Company's contracts with customers in such district but in that event the purchase price payable by such other corporation shall be receivable by the Council.

22. This agreement (except as to clause 17 hereof) is conditional upon (1) the Council obtaining the necessary Parliamentary powers to carry the same into effect and (2) this agreement being approved by the Company in general meeting and in case before the end of the month of September one thousand nine hundred and nineteen the said powers shall not be obtained or this agreement shall not be approved as aforesaid or in the event of the date of sale not happening within two years from the date hereof either party hereto may by notice in writing to the other of them determine this agreement without prejudice to clause 17 hereof but except as aforesaid such determination shall not give rise to any claim for compensation damages or otherwise.

In witness whereof the Company and the Council and W. T. Glover and Company Limited have hereunto affixed their respective common seals the day and year first before written.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

The FIRST SCHEDULE hereinbefore referred to.

1. All those pieces or parcels of land situate in the parish of Stretford in the county of Lancaster and formerly part of Trafford Park Estate containing together six thousand four hundred and sixty-two and four-ninths square yards or thereabouts (originally forming part of a larger plot of land containing twenty-eight thousand five hundred and fifty square yards) delineated on the plan annexed to an indenture dated the twenty-third day of July one thousand nine hundred and eight made between John Lawson and Frederick Smith of the first part John Harwood and Alexander Lawson Ormrod of the second part W. T. Glover and Company Limited of the third part the North of England Trustee Debenture and Assets Corporation Limited of the fourth part the Company of the fifth part and Harold Agnew of the sixth part and thereon respectively edged blue and coloured yellow except and reserving nevertheless all mines and minerals under the same and powers of working as the same were excepted and reserved by an indenture dated the thirty-first day of December one thousand eight hundred and ninety-eight made between Trafford Park Estates Limited of the first part Lord Churchill and Mackworth Praed of the second part W. T. Glover and Company Limited of the third part and John Broadfield Parkinson of the fourth part and also by way of grant and not of exception a certain right of way over and along the road coloured brown on the plan annexed to an indenture dated the fourteenth day of October one thousand nine hundred and one and made between W. T. Glover and Company Limited of the first part John Lawson and Frederick Smith of the second part the Trafford Power and Light Supply Limited of the third part and John Broadfield Parkinson of the fourth part and thereon marked "Road and railway twenty yards wide" as the same was granted by the said indenture dated the fourteenth day of October one thousand nine hundred and one and also a certain right of sewerage and the benefit of certain covenants by Trafford Park Estates Limited as the same are set out in the last-mentioned indenture and the said indenture of the thirty-first December one thousand eight hundred and ninety-eight The said premises are sold subject to the payment of the perpetual yearly rent-charge of one shilling for every square yard of the said land and to the observance and performance of the grantees covenants conditions and agreements in the said indentures dated respectively the fourteenth day of October one thousand nine hundred and one and the twenty-third day of July one thousand nine hundred and eight contained so far as the same remain to be observed and performed but with the benefit of the covenants by the grantors therein respectively contained The above premises are also sold subject to an indenture of release of covenants dated the eighteenth day of September one thousand nine

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxxvii]
Act, 1919.

hundred and five made between Lord Churchill and Mackworth Praed of the first part Trafford Park Estates Limited of the second part John Lawson and Frederick Smith of the third part W. T. Glover and Company Limited of the fourth part the Company of the fifth part and the North of England Trustee Debenture and Assets Corporation Limited of the sixth part and to the observance and performance of the covenants conditions and agreements in such indenture contained and on the part of the Company and their successors in title to be observed and performed. A.D. 1919.

2. All that plot of land situate in the parish of Stretford in the county of Lancaster and forming part of the Trafford Park Estate containing in the whole one thousand and ninety-seven and seven-ninths square yards or thereabouts as the same is delineated on the plan drawn on an indenture dated the fourteenth day of November one thousand nine hundred and five and made between William Henry Bailey of the first part the Company of the second part and Harold Agnew of the third part and thereon edged with a red line except and reserving as in such indenture is excepted and reserved but together with the benefit of the covenants and rights of way and sewerage therein set out.

The above premises are sold subject to the payment of the perpetual yearly rentcharge of one shilling and sixpence per square yard and to the observance and performance of the covenants conditions and agreements in such indenture contained and on the part of the Company and their successors in title to be observed and performed.

3. A plot of land in the parish of Davyhulme part of the Trafford Park Estate containing one hundred and thirty-three and one-third square yards or thereabouts and delineated and edged pink on the plan drawn on an indenture dated the seventh day of October one thousand nine hundred and fourteen and made between Viscount Churchill and Herbert Haynes Twining of the first part Trafford Park Estates Limited of the second part the Company of the third part and Edward Lawrence Baddeley of the fourth part subject to the payment of a perpetual yearly rentcharge of six pounds thirteen shillings and fourpence Together with the rights and easements therein set out but except and reserving as therein mentioned.

4. A plot of land in the parish of Davyhulme part of the Trafford Park Estate containing one hundred and sixty and two-thirds square yards or thereabouts and delineated and edged pink on the plan drawn on an indenture of the same date and made between the same parties as the last-mentioned indenture subject to the payment of a perpetual yearly rentcharge of eight pounds and eightpence Together with the rights and easements set out but except and reserving as therein mentioned.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

5. A plot of land in the parish of Stretford part of the Trafford Park Estate containing one thousand six hundred and fifty-three and one-third square yards and delineated and edged pink on the plan annexed to an indenture dated the twenty-sixth day of February one thousand nine hundred and sixteen and made between Grain Elevator Estate Limited of the first part the Company of the second part and Albert William Claremont of the third part except all mines and minerals subject to the payment of a perpetual yearly rentcharge of eighty-two pounds thirteen shillings and fourpence Together with the rights and easements therein set out but except and reserving as therein mentioned.

6. A plot of land fronting Trafford Wharf Road Stretford measuring twenty-two feet by twenty-two feet delineated and edged blue on the plan annexed to a lease dated the thirtieth day of December one thousand nine hundred and fifteen and made between the Manchester Dry Docks Company Limited of the one part and the Company of the other part held for a term ending the thirtieth day of June one thousand nine hundred and thirty (determinable by the docks company in certain events on or after thirty-first day of December one thousand nine hundred and twenty-two on six months' notice) at a peppercorn rent.

7. A plot of land on the north side and contiguous to the Bridgewater Canal described and conveyed by a deed dated the thirteenth day of December one thousand nine hundred and eighteen made between the North of England Trustee Debenture and Assets Corporation Limited of the first part John Harwood and Alexander Lawson Ormrod of the second part W. T. Glover and Company Limited of the third part the Trafford Power and Light Supply (1902) Limited of the fourth part and Albert William Claremont of the fifth part.

8. A plot of land on the south side and contiguous to the Bridgewater Canal described and conveyed by a deed dated the thirteenth day of December one thousand nine hundred and eighteen made between W. T. Glover and Company Limited of the first part the Trafford Power and Light Supply (1902) Limited of the second part and Albert William Claremont of the third part.

9. All other if any plots of land which the Company may acquire and the benefit of all agreements if any which they may enter into for the acquisition of plots of land for the purposes of the said business.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

The SECOND SCHEDULE hereinbefore referred to.

A.D. 1919.

1. 12th October 1898 -	Trafford Park Estates Limited of the one part and William Paul James Fawcus of the other part.	Agreement for the exclusive privilege of supplying electricity and fuel gas.
2. 26th May 1901 -	Ludwig Mond of the one part and the Trafford Power and Light Supply Limited of the other part.	Licence for the gas plant patents.
3. 22nd August 1901 -	Trafford Power and Light Supply Limited of the one part and the Manchester Ship Canal Company of the other part.	Agreement for the supply of electrical energy and for wayleaves.
4. 20th January 1902	Lord Churchill and Mackworth Praed of the first part Trafford Park Estates Limited of the second part and the Trafford Power and Light Supply Limited of the third part.	Grant of exclusive privilege of supplying electricity and fuel gas.
5. 11th June 1902 -	Lord Churchill and Mackworth Praed of the first part Trafford Park Estates Limited of the second part and the Company of the third part.	Agreement fixing the price to be charged for fuel gas.
6. - - - -	The benefit of sections 23 and 40 of the Stretford Urban District Council Act 1904.	—
7. - - - -	The benefit of section 25 of the Trafford Park Act 1904.	—
8. - - - -	The benefit of section 23 of the Lancashire Electric Power Act 1906.	—
9. - - - -	The benefit of section 10 of the West Manchester Light Railway Order 1904.	—
10. 13th October 1902 -	The Manchester Ship Canal Company and the Company.	Agreement as to use of water from canal.
11. 13th October 1902 -	The Manchester Ship Canal Company and the Company.	Agreement as to gantry over canal embankment.
12. 13th October 1902 -	The Manchester Ship Canal Company and the Company.	Agreement as to gateway in canal company's fence.
13. 1st September 1905	Cheshire Lines Committee and the Company.	Agreement as to laying cables along Trafford Bridge.
14. 22nd May 1906 -	Cheshire Lines Committee and the Company.	Agreement as to laying cable across railway.
15. 25th May 1906 -	The urban district council of Stretford and the Company.	Agreement in respect of supply of electrical energy for traction purposes in Trafford Park.

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919.

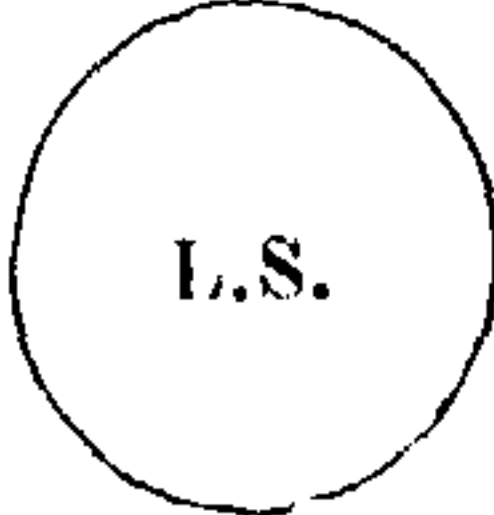
16. 20th December 1907	Isaac Brash and the Company	Agreement as to utilising main cables.
17. 31st December 1907	Mrs. Edith Mary Hall and the Company.	Agreement as to utilising main cables.
18. 31st December 1907	Thomas Holmes Woodcock and the Company.	Agreement as to utilising main cables.
19. 1st March 1908 -	Trafford Park Dwellings Limited and the Company.	Agreement as to utilising main cables.
20. 1st March 1908 -	Marshall Stevens and the Company.	Agreement as to utilising main cables.
21. 30th August 1908 -	The urban district council of Stretford and the Company.	Agreement supplemental to that of 25th April 1907.
22. 29th May 1909 -	The Manchester Ship Canal Company and the Company.	Agreement as to easements as to use of water (supplemental to agreement of the 13th October 1902).
23. 14th June 1909 -	Henry Francis Saint and the Company.	Agreement as to utilising main cables.
24. 10th November 1909	Marshall Stevens on behalf of Trafford Park Estates Limited to the Company.	Undertaking not to demand payment of expenses of maintaining &c. roads &c.
25. 31st December 1909	The Stretford Urban District Council and the Company.	Agreement as to adoption of Trafford Park Road.
26. 15th March 1911 -	The Company and the National Telephone Company Limited.	Agreement as to fixing poles stays &c.
27. 26th July 1912 -	The Earl of Ellesmere and the Company.	Agreement as to way-leaves for cables.
28. 1st August 1912 -	W. T. Glover and Company Limited and the Company.	Grant of easement as to cables.
29. 15th August 1912 -	The Clifton and Kersley Coal Company Limited and the Company.	Agreement as to way leaves for cables.
30. 31st December 1912	W. T. Glover and Company Limited and the Company.	Deed of covenant as to lights.
31. 7th March 1913 -	The Manchester Ship Canal Company and the Company.	Agreement as to way-leaves for poles and stay.
32. 19th February 1915	The Co-operative Wholesale Society Limited and the Company.	Agreement as to easement to lay and maintain cables &c.
33. 21st July 1915 -	Viscount Churchill and Herbert Haynes Twining (1) Trafford Park Estates Limited (2) Grain Elevator Estate Limited (3) the Company (4).	Grant of easement as to laying cables.
34. 5th January 1916 -	The Manchester Ship Canal Company to the Company.	Grant of easement to lay cables.
35. 26th February 1916	Viscount Churchill and Herbert Haynes Twining (1) Trafford Park Estates Limited (2) the Company (3).	Grant of easement to lay cables.
36. 13th December 1918	W. T. Glover and Company Limited and the Trafford Power and Light Supply (1902) Limited.	Conveyance of land on the south side of Bridgewater Canal.

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

A.D. 1919.

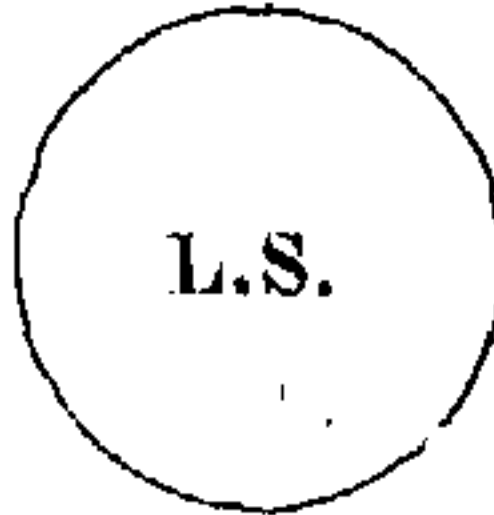
37. 13th December 1918	The North of England Trustee Debenture and Assets Cor- poration Limited of the first part John Harwood and Alexander Lawson Ormrod of the second part W. T. Glover and Company Limited of the third part the Trafford Power and Light Supply (1902) Limited of the fourth part and Albert William Claremont of the fifth part.	Conveyance of land on the north side of Bridgewater Canal.
38. 13th December 1918	W. T. Glover and Company Limited and the Trafford Power and Light Supply (1902) Limited.	Agreement for the pay- ment of moneys inci- dent to the sale of land on the south side of Bridgewater Canal.

The common seal of the Trafford Power and Light
Supply (1902) Limited was affixed hereto in the
presence of



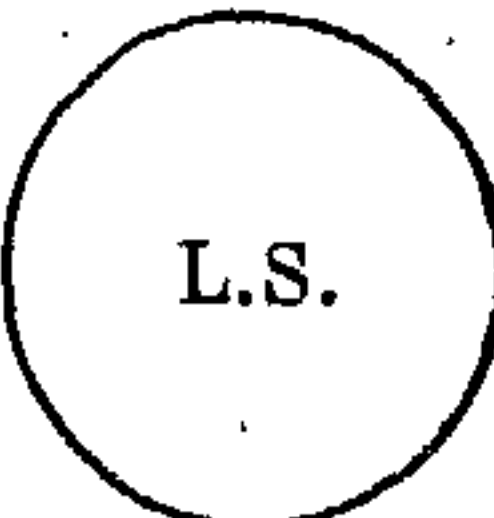
A. E. TANNER
E. A. CLAREMONT } Directors.
F. J. WARREN Secretary.

The common seal of W. T. Glover and Company }
Limited was affixed hereto in the presence of



E. A. CLAREMONT Director.
F. J. WARREN Secretary.

The common seal of the urban district council of
Stretford was pursuant to a resolution in that
behalf hereunto affixed in the presence of



T. B. FINNEY Chairman.
GEO. H. ABRAHAMS Clerk.

SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Stretford Urban District Council Act 1919 and of
other their powers in that behalf them enabling the Stretford Urban
District Council (hereinafter called "the Council") in consideration of
the sum of

pounds

[Ch. lxvii.] *Stretford Urban District Council* [9 & 10 GEO. 5.]
Act, 1919.

A.D. 1919. paid to the treasurer of the Council by
(hereinafter called "the mortgagee") do hereby grant and assign unto
the mortgagee [his] executors administrators and assigns such propor-
tion of the revenues of the Council in the said Act defined as the
said sum so paid doth or shall bear to the whole sum which is or
shall be charged on the said revenues To hold unto the mortgagee
[his] executors administrators and assigns from the day of the date of
these presents until the said sum of
pounds shall be fully paid and satisfied with interest for the same
(subject as hereinafter provided) at the rate of per centum
per annum from the day of one thousand
nine hundred and until payment of the said principal sum
such interest to be paid half-yearly [on the day
of and the day of in each year]
And it is hereby agreed that the said principal sum of
pounds shall be repaid at the office of the Council in the said district
[(subject as hereinafter provided) on the day of
one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the
before-mentioned time for repayment may be extended to such sub-
sequent day or days and upon any such extension the before-mentioned
rate of interest may be altered to such other rate or rates of interest
as shall from time to time be mentioned and specified in an endorse-
ment to be made hereon under the hands of the chairman and clerk of
the Council for the time being respectively and that upon any such
endorsement being made whether relating to extension of time only or
to extension of time with alteration of rate of interest the provisions
thereof shall be incorporated herewith and shall operate and take effect
as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal
to be hereunto affixed this day of
one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-mentioned
time for repayment of the within-mentioned principal sum of
 is hereby extended to the
day of one thousand nine hundred and
 [and the interest to be paid thereon on and from
the day of one thousand nine hundred
and is hereby declared to be at the rate of
per centum per annum].

Dated this day of one thousand
nine hundred and .

[9 & 10 GEO. 5.] *Stretford Urban District Council* [Ch. lxvii.]
Act, 1919.

FORM OF TRANSFER OF MORTGAGE.

A.D. 1919.

I [the within-named]
[of _____] in consideration
of the sum of _____ pounds paid to me
by _____ of _____ (hereinafter
called "the transferee") do hereby transfer to the transferee [his]
executors administrators and assigns [the within-written security] [the
mortgage number _____ of the revenues of the Stretford
Urban District Council bearing date the _____ day
of _____] and all my right and interest under the same
subject to the several conditions on which I hold the same at the
time of the execution hereof and I the transferee for myself my
executors administrators and assigns do hereby agree to take the said
mortgage security subject to the same conditions.

Dated this _____ day of _____ one thousand nine
hundred and _____

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C.2, and 28, ABINGDON STREET, LONDON, S.W.1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
23, FORTH STREET, EDINBURGH;
or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

